

1 ENGROSSED HOUSE
JOINT

2 RESOLUTION NO. 1067

By: Eaves and Lepak of the
House

3
4 and

Daniels of the Senate
5
6

7 A Joint Resolution directing the Secretary of State
8 to refer to the people for their approval or
9 rejection a proposed amendment to Section 2 of
10 Article XXV-A of the Constitution of the State of
11 Oklahoma; allowing the State of Oklahoma not cover
12 Medicaid expansion if federal financial participation
13 drops below ninety-percent matching; providing for
14 contingency based upon certain voting outcome;
15 ordering a legislative referendum; providing for
16 contingency based on federal Medicaid; ordering a
17 special election; providing ballot title; and
18 directing filing.
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20

21 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
22 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

23 SECTION 1. The Secretary of State shall refer to the people for
24 their approval or rejection, as and in the manner provided by law,
the following proposed amendment to Section 2 of Article XXV-A of
the Constitution of the State of Oklahoma to read as follows:

Section 2. A. In addition to those otherwise eligible for
medical assistance under Oklahoma's Medicaid program, the State
shall provide medical assistance under Oklahoma's Medicaid program
to Low Income Adults.

1 B. No greater or additional burdens or restrictions on
2 eligibility or enrollment shall be imposed on persons eligible for
3 medical assistance pursuant to this Article than on any other
4 population eligible for medical assistance under Oklahoma's Medicaid
5 program.

6 C. If the federal financial participation is less than ninety
7 percent (90%) for Medicaid expansion, the Oklahoma Legislature may
8 decide to not cover the additional costs to the state.

9 D. If the State Question contained in Enrolled House Bill No.
10 4440 of the 2nd Session of the 60th Oklahoma Legislature is approved
11 by the people, the provisions of this section shall not become
12 operative as law.

13 SECTION 2. Pursuant to Section 3 of Article V of the Oklahoma
14 Constitution, there is hereby ordered the following legislative
15 referendum which shall be filed with the Secretary of State and
16 addressed to the Governor of the state, who shall submit the same to
17 the people for their approval or rejection at the election to be
18 conducted on August 25, 2026.

19 SECTION 3. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 7402 of Title 63, unless there
21 is created a duplication in numbering, reads as follows:

22 A. In addition to those otherwise eligible for medical
23 assistance under Oklahoma's Medicaid program, the State shall
24

1 provide medical assistance under Oklahoma's Medicaid program to Low
2 Income Adults.

3 B. No greater or additional burdens or restrictions on
4 eligibility or enrollment shall be imposed on persons eligible for
5 medical assistance pursuant to this Article than on any other
6 population eligible for medical assistance under Oklahoma's Medicaid
7 program.

8 C. If the federal financial participation is less than ninety
9 percent (90%) for Medicaid expansion, the Oklahoma Legislature may
10 decide to not cover the additional costs to the state.

11 SECTION 4. The Ballot Title for the proposed Constitutional
12 amendment as set forth in SECTION 1 of this resolution and the
13 statutory enactment contained in Section 3 of this measure shall be
14 in the following form:

15 BALLOT TITLE

16 Legislative Referendum No. _____ State Question No. _____

17 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

18 This measure amends the Oklahoma Constitution. The measure
19 amends Section 2 of Article 25A by allowing the State of
20 Oklahoma to not cover the Medicaid expansion if the federal
21 financial participation drops below ninety percent (90%)
22 matching. If another State Question contained in Enrolled House
23 Bill No. 4440 of the 2nd Session of the 60th Oklahoma
24 Legislature becomes the law, this change in the Constitution

1 would not become the law. This measure would also enact a
2 statute that is almost identical in wording to Section 2 of
3 Article XXV-A of the Oklahoma Constitution. This section
4 relates to Medicaid coverage. It would allow the Legislature to
5 make a choice about state Medicaid funding based on changes in
6 Medicaid made at the federal level.

7 SHALL THE PROPOSAL BE APPROVED?

8 FOR THE PROPOSAL — YES _____

9 AGAINST THE PROPOSAL — NO _____

10 SECTION 5. A special election is hereby ordered to be held
11 throughout the State of Oklahoma on the date of August 25, 2026, at
12 which time the proposed amendment to the Constitution of the State
13 of Oklahoma, as set forth in SECTION 1 of this measure, shall be
14 submitted to the people of Oklahoma for their approval or rejection
15 as and in the manner provided by law.

16 SECTION 6. The Chief Clerk of the House of Representatives,
17 immediately after the passage of this measure, shall prepare and
18 file one copy thereof, including the Ballot Title set forth in
19 SECTION 4 hereof, with the Secretary of State and one copy with the
20 Attorney General.

1 Passed the House of Representatives the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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8 _____
9 Presiding Officer of the Senate